

BEFORE THE BOARD OF BEHAVIORAL SCIENCE EXAMINERS
OF THE STATE OF IOWA

IN THE MATTER OF:	)	CASE NUMBER: 05-002
	)	
FLORALYN GROFF PERRY,	)	
	)	SETTLEMENT AGREEMENT
	)	AND FINAL ORDER
Respondent.	)	

COME NOW the Board of Behavioral Science Examiners of the State of Iowa ("Board") and Floralyn Groff Perry ("Respondent"), and pursuant to Iowa Code sections 17A.10 and 272C.3(4), enter into the following Settlement Agreement and Final Order of the contested case currently on file against the Respondent:

1. The Respondent was originally licensed to practice as a mental health counselor in the state of Iowa on September 28, 1995, and holds license number 131 00165.
2. A Notice of Hearing and Statement of Matters Asserted was filed against the Respondent on February 10, 2006. A contested case hearing in this matter is scheduled for May 12, 2006.
3. The Board has jurisdiction over the parties and subject matter of the Notice of Hearing and Statement of Matters Asserted.
4. Execution of this Settlement Agreement and Final Order constitutes the resolution of this contested case. Respondent has a right to a hearing on the charges, but waives her right to hearing and all attendant rights, including the right to appeal, by freely and voluntarily agreeing to this Settlement Agreement and Final Order. Once entered, this Order shall have the force and effect of a disciplinary order entered

following contested case hearing.

5. Respondent is freely and voluntarily entering into this Settlement Agreement and Final Order, and she agrees that the State's counsel may present this agreement to the Board.

6. This agreement is subject to approval of the Board. If the Board approves this agreement, it becomes the final disposition of this matter. If the Board fails to approve this agreement, it shall be of no force or effect to either party.

7. This agreement shall be part of the permanent record of Respondent and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

8. This Settlement Agreement and Final Order and the Statement of Matters Asserted become public records available for inspection and copying upon execution of this agreement in accordance with the requirements of Iowa Code Chapters 22 and 272C. The Notice of Hearing is also a public record which became available for inspection and copying the date it was filed in accordance with the requirements of Chapters 17A, 22, and 272C.

9. The Board's approval of this agreement shall constitute a FINAL ORDER of the Board.

IT IS THEREFORE ORDERED:

10. The Respondent agrees to voluntarily surrender her license to practice mental health counseling in the State of Iowa and understands that pursuant to 645 Iowa Administrative Code Section 12.1(5) a voluntary surrender, when accepted by the

Board, shall have the same force and effect as an order of revocation. This agreement shall constitute Respondent's written statement of intention to surrender her license pursuant to 12.1(5).

11. The Respondent shall surrender her mental health counselor license to the Board within ten (10) days of the execution date of this Agreement. The execution date is that date which accompanies the Board Chairperson's signature.

12. By voluntarily surrendering her license, the Respondent agrees not to use any words or titles which imply or represent that she is a licensed mental health counselor or to otherwise hold herself out to the public as a licensed mental health counselor or to engage in the practice of mental health counseling for which a license is required in the State of Iowa.

13. The Respondent agrees that should she ever seek reinstatement of her license to practice mental health counseling in the State of Iowa, such application shall be subject to the provisions of 645 Iowa Administrative Code Section 11.31. In any application for reinstatement, the Respondent shall be required to submit evidence that demonstrates to the Board's satisfaction that the basis for the surrender of Respondent's license no longer exists and that it will be in the public interest for the license to be reinstated. The Respondent shall bear the burden of proof establishing these facts.

This settlement agreement and final order is approved by the Board on May 12, 2006.